



CHAPTER 90.

An Act to provide for the prolongation of the service of certain men serving in the armed forces of the Crown. [5th September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) This section applies to every soldier of the regular forces, man belonging to the army reserve, man of the territorial army, airman of the regular air force, man belonging to the air force reserve or man of the auxiliary air force who, apart from this Act, would be entitled to be discharged at any time after the date of the passing of this Act and before the end of the emergency, but does not apply to any person serving in the Royal Marine forces.

Prolonga-
tion of
service.

(2) The term of service of any person to whom this section applies shall be deemed not to expire until the end of the emergency.

(3) In this section the expression "the end of the emergency" means the end of such day as His Majesty may by Order in Council declare to be the day on which the emergency that was the occasion of the passing of this Act came to an end; and for the purposes of this section a man shall be deemed to be a soldier of the regular forces or an airman of the regular air force notwithstanding that he is for the time being released from

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army service or air force service by virtue of an order under subsection (4) of section three, or subsection (2) of section five, of the Armed Forces (Conditions of Service) Act, 1939.

Short title. 2. This Act may be cited as the Military and Air Forces (Prolongation of Service) Act, 1939.

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